

SMITH & ADAMS

GROUP

FORWARD PURCHASE AGREEMENT

SMITH & ADAMS CAPITAL, S.A.

FORWARD PURCHASE AGREEMENT

THIS FORWARD PURCHASE AGREEMENT (the "Agreement") is entered into on MM/YYYY by and between:

SMITH & ADAMS CAPITAL, S.A, a company incorporated under the laws of Portugal, with registered office at Avenida José Malhoa, número 14 – 7º andar, 1070-158, freguesia de Campolide, Concelho de Lisboa, registered within the Portuguese commercial registry department with the number 518910911, herein represented by its attorney-in-fact Suelen Costa Pires, married, taxpayer number 303082585, holder of the residence permit no. 4P0K76460, with professional address at Avenida José Malhoa, number 14 – 7th floor, Lisbon.

and

_____, born in _____, of _____ nationality, [marital status], resident at _____, holder of the Passport number _____, issued by _____ and valid until _____, Portuguese taxpayer number _____ (the "Investor") each of the contracting parties being individually referred to as the "Party" and jointly referred to as "Parties".

WHEREAS:

A. SMITH & ADAMS CAPITAL, S.A., is a company with a substantial track record in strategic investments across different sectors in Portugal and other European countries.

B. To enable private investors to participate in one of its investments in Portugal, SMITH & ADAMS CAPITAL, S.A., has promoted the incorporation of a fund named SMITH & ADAMS ONE, FCR, holder of the tax identification number 720022649, the fund is duly registered in the Portuguese Securities Market Commission (CMVM) with the number 2387, managed and legally represented by THE LAKHANI GROUP CAPITAL SGOIC, with registered office at Centro Empresarial Torres de Lisboa, Rua Tomás da Fonseca, Torre G, 7º C, 1600-209 Lisboa, registered under the sole registration and tax identification number 516326880 (the "Fund");

C. The Fund will invest in MARGEM VIGILANTE INVESTIMENTOS IMOBILIÁRIOS, UNIPessoal, LDA, with registered office at Av. da Liberdade no 258, 9º E, Lisboa, Santo António, 1250-149, registered under the sole registration and tax identification number 517878267 (the "Company") which shall explore and manage the Urban Collection-Beato project with registered office at Rua do Sol a Chelas, 15 e 17, listed in the respective urban property matrix under Article 751, registered at Land Registry Office under number 583, parish of Beato and registered at the Tax Authorities under article 751 of the Parish of Beato, municipality of Lisbon (the "Urban Collection");

D. The Investor is interested in subscribing to 8.496 (eight thousand four hundred ninety-six) participation units of the Fund or (UPS), at a global subscription of €500,000.00 (five hundred thousand euros) (the UPS), and apply for the Golden Visa;

E. SMITH & ADAMS CAPITAL, S.A., ensures, by this Agreement, that the mentioned investment, as of the present date, fulfils the necessary criteria for the Investor to request the Golden Visa and is willing to provide a guarantee regarding such eligibility;

F. The Parties intend to establish the terms and conditions of the yield time-frame, by the Investor to SMITH & ADAMS CAPITAL, S.A., ensuring the Investor an exit strategy from the Fund.

THEREFORE, in consideration of the mutual covenants herein and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the undersigned hereby agree as follows:

1°

Definitions

In this Agreement, except where set forth otherwise, expressions when used in capital letters shall have the meaning ascribed to them herein (without prejudice to other terms being defined elsewhere in this Agreement), unless the context in which they are used expressly requires otherwise.

References to the singular include the plural and vice versa, except if the Agreement expressly requires otherwise.

References to paragraphs, recitals, clauses, sub-clauses, and schedules are references to those of this Agreement, except if the context expressly requires otherwise.

Headings to the clauses of this Agreement shall not be deemed relevant for the interpretation of this Agreement.

2°

Object

Under the terms of this Agreement, SMITH & ADAMS CAPITAL, S.A. (the 'Promoter') promises to purchase the Participation Units from the Investor. For the avoidance of doubt, the Promoter assumes a direct and autonomous contractual obligation to pay the Investor a guaranteed annual yield of 5%. The Parties expressly acknowledge that this yield constitutes a Contractual Premium owed by the Promoter to the Investor and is established as a specific derogation from the general capitalization principle set forth in Article 25 of the Fund Management Regulation. Consequently, the payment of this yield is independent of the Fund's accounting results or any resolution passed by the General Meeting of Participants.

3°

Sale and Transfer

1. The sale of the Participation Units, from the Investor to SMITH & ADAMS CAPITAL, S.A., shall occur between January and December in the calendar years from 2032 to 2035 (each year, respectively, a "Purchase Period"). To elect for a transfer within a Purchase Period, the Investor must provide advance notice. This does not prejudice the possibility of a different date being mutually agreed upon between the Parties in writing.
2. The Investor undertakes to notify SMITH & ADAMS CAPITAL, S.A of the intention of having the (UPS) transfer carried out within that specific Purchase Period, in accordance with an advance notice period of at least 90 (ninety) days prior to the start of the chosen Purchase Period, with the SMITH & ADAMS CAPITAL, S.A undertaking to confirm receipt and inform the Investor of a specific transfer date, within the applicable and indicated Purchase Period, in which the signature of the definitive agreement of purchase and sale shall take place (the "Transfer Date").
3. SMITH & ADAMS CAPITAL, S.A, shall communicate to the Investor, 30 (thirty) days before the Transfer Date, the purchase price of the (UPS), calculated under the terms of Clause 4°.
4. If SMITH & ADAMS CAPITAL, S.A, does not receive a notification from the Investor 6 months after the minimum holding period, specifying the intention to sell the participation units, SMITH & ADAMS CAPITAL, S.A, shall unilaterally notify the Investor of the applicable Transfer Date.
5. On the Transfer Date, the Parties undertake to effect all actions appropriate to ensure that the transaction contemplated in this Agreement takes full effect in the terms set forth herein.
6. The Investor undertakes to provide, in due time, to SMITH & ADAMS CAPITAL, S.A, all the elements and documents that are legally necessary and that are the Investor's responsibility, to complete or instruct the transfer of the (UPS). If the Investor fails to effect all actions contemplated, SMITH & ADAMS CAPITAL, S.A, will not be bound to purchase the (UPS) in the chosen Purchase Period.
7. The Investor hereby declares and recognizes that if the Investor or the Investor's representatives fail to appear on the Transfer Date, scheduled legitimately and in due time for the execution of the definitive agreement of purchase and sale of the (UPS), SMITH & ADAMS CAPITAL, S.A, will move the UPS' transfer to the next Purchase Period, unless mutually agreed otherwise and confirmed in writing.
8. For the purposes foreseen above, the Investor hereby declares and recognizes that if the Investor or the Investor's representatives fail to appear on the Transfer Date, SMITH & ADAMS CAPITAL, S.A, will be entitled to proceed with the execution of such agreement and apply the specific performance mechanisms and default interest foreseen in Clause 7°.
9. In accordance with the paragraphs above, SMITH & ADAMS CAPITAL, S.A, will, if executing the definitive agreement of purchase and sale of the (UPS) on behalf of the Investor, transfer the applicable purchase price to the bank account provided by the Investor as set forth in Clause 4°, within 5 (five) business days.

4°

Purchase Price

1. The Parties agree that the purchase price ("Purchase Price") of the (UPS), due by SMITH & ADAMS CAPITAL, S.A. (the "Promoter") to the Investor under the terms hereunder, shall be the fixed amount of €500,000.00 (five hundred thousand euros).

2. In addition to the Purchase Price, and notwithstanding the rules regarding the capitalization of income provided in Article 25 of the Fund Management Regulation, the Promoter hereby guarantees the Investor a total Contractual Yield of € 125,000.00 (one hundred and twenty-five thousand euros) (representing an annual yield of 5% paid in the years 3, 4, and 5).

3. The Investor acknowledges and accepts that these payments constitute a direct debt obligation of the Promoter and do not constitute a "distribution of Fund income" under the scope of the Asset Management Regime. As such, the Promoter remains liable for these payments regardless of the Fund's performance or dividend declarations.

4. The Contractual Yield shall be liquidated by the Promoter according to the following schedule:

- 3rd Year: €25,000.00 (twenty-five thousand euros);
- 4th Year: €25,000.00 (twenty-five thousand euros);
- 5th Year: €75,000.00 (seventy-five thousand euros).

The amount paid on the fifth year includes the deferred yield corresponding to years 1 and 2, bringing the total Contractual Yield paid over the five-year timeframe to €125,000.00.

5. As a guarantee for the full and timely payment of the Purchase Price and the Contractual Yield instalments, the Promoter hereby designates one (1) specific residential unit within the Urban Collection Project (as identified in whereas C). In the event of a default in any payment obligation under this Agreement, the Promoter's financial liability shall be automatically and exclusively satisfied through the transfer of the definitive title of the property identified below, via the mandatory mechanism of Datio in Solutum (Dação em Cumprimento):

Legally Owning: 1 (one) of 137 (one hundred and thirty-seven) indivisible residential units ("1/137")
Location: Rua do Sol a Chelas, 15 and 17, Lisbon.
Land Registry: Registered under no. 583 of the Parish of Beato.
Tax Matrix: Article no. 751 of the Parish of Beato.

6. The Promoter warrants that the asset is free of any liens or encumbrances. The Parties agree that this property serves as a mandatory Datio in Solutum (Dação em Cumprimento), obligating the absolute satisfaction of the debt through the conveyance of the asset in kind in the event of default, completely superseding any cash settlement.

7. All payments shall be made via wire transfer to the account provided by the investor.

8. Valuation experts shall be appointed solely by the Promoter, provided they are officially recognized and registered with the CMVM or RICS. All costs associated with such valuations shall be borne by the Promoter.

5°

Representations and Warranties

1. SMITH & ADAMS CAPITAL, S.A, represents and warrants to the Investor:
 2. To be a company duly incorporated and validly existing under the laws of Portugal, with full power and authority to own its property and assets and conduct its business;
 3. That this Agreement constitutes the legal, valid, and binding obligations of SMITH & ADAMS CAPITAL, S.A, enforceable in accordance with its terms;
 4. That the execution and delivery of this Agreement by SMITH & ADAMS CAPITAL, S.A, and the completion of the transaction contemplated herein do not and will not violate, conflict with, result in a breach of, or constitute a default under any contract, agreements, commitments, or instrument or obligation to which SMITH & ADAMS CAPITAL, S.A, is a party;
 5. That SMITH & ADAMS CAPITAL, S.A, is not, to its best knowledge, in a situation of bankruptcy, insolvency, winding-up, liquidation, or any other state which could affect its financial ability to purchase the (UPS) from the Investor on the Transfer Date or fulfil the guaranteed yield payments.
 6. For this Agreement, the Investor declares and warrants:
 7. On the date of execution of the definitive agreement of purchase and sale of the (UPS), the (UPS) shall not be burdened with any liens, mortgages, liabilities, or charges;
 8. Not to enter into or promise to enter into any contract or agreement implying the transfer, burden, or promise to transfer or burden said (UPS) in favor of third parties;
 9. To liquidate, in a full and timely manner, any taxes, fees, or contributions in respect of the (UPS), and leave neither outstanding nor contingent any fiscal liability for which said (UPS) may be liable.
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6°

Golden Visa

1. This Agreement is executed in accordance with the Law no. 23/2007, of July 4th (the "Legal Framework for Foreigners"), as amended by Law no. 56/2023, of October 6th (the "Mais Habitação" Law), and Regulatory Decree no. 84/2007, of November 5th, which govern the granting of Residence Permits for Investment (the "Golden Visa").

2. In accordance with the background of this Agreement, if the Golden Visa application (specifically the granting of the Investor's pre-approval by AIMA) is rejected due to a reason exclusively related to the nature of the investment as described in the Preamble of this Agreement, the Investor may re-submit the application. In such an event, SMITH & ADAMS CAPITAL, S.A, shall assume all reasonable legal and administrative costs associated with the resubmission.

3. If the re-submission mentioned above is definitively denied by AIMA for facts exclusively related to the nature of the investment, SMITH & ADAMS CAPITAL, S.A, hereby agrees to purchase the (UPS) from the Investor for the fixed amount of €500,000.00 (five hundred thousand euros), minus any previously paid amounts.

4. The obligation to purchase under Clause 6º is subject to the condition that AIMA has definitively confirmed in writing its refusal to grant the Golden Visa pre-approval, based on the investment's characteristics as defined in this Agreement and the Fund Management Regulation.

5. The Investor must notify SMITH & ADAMS CAPITAL, S.A, in writing of any refusal within 30 (thirty) days of receipt of the notification from AIMA, providing the formal document of refusal. SMITH & ADAMS CAPITAL, S.A, shall not be liable if the rejection is due to reasons attributable to the Investor.

6. The obligations of SMITH & ADAMS CAPITAL, S.A, under this Clause 6º shall automatically cease upon the pre-approval (notificação de deferimento) of the Golden Visa application by AIMA. The Investor undertakes to notify SMITH & ADAMS CAPITAL, S.A, of such pre-approval within 5 (five) business days.

7º

Default and Termination

1. The definitive, repeated, or serious breach of the obligations set forth in this Agreement by either Party, including but not limited to, the Investor does not comply with the present agreement or SMITH & ADAMS CAPITAL, S.A, fails to pay the guaranteed yield or the final Purchase Price, grants the non-defaulting Party the right to terminate this Agreement, without prejudice to the right to indemnification under the general terms of the law and this Agreement.

2. The termination of the Agreement pursuant to the preceding paragraph shall automatically take place if the non-compliant Party does not cure the breach within 20 (twenty) days after receiving a notification for that purpose that specifies which obligations are considered unfulfilled.

3. In case of definitive breach of this Agreement by the Investor, namely based on the failure to execute the definitive Purchase and Sale Agreement of the (UPS) as scheduled, the Promoter shall have the right, concurrently with the termination of this Agreement, to: (i) demand the immediate repayment of all amounts paid to date, accrued with commercial interest at the legal rate in force; or (ii) demand specific performance (execução específica) pursuant to Article 830º of the Portuguese Civil Code.

4. In case of definitive breach by SMITH & ADAMS CAPITAL, S.A, specifically regarding the non-payment of the Purchase Price or the yield milestones, the breach shall be settled exclusively through the mandatory transfer of full title and ownership of the residential unit in the Urban Collection (Beato) project, as established in Clause 4° of this Agreement, in lieu of any financial payout.

8°

Right of Withdrawal

1. The Investor undertakes to remain invested under this agreement for a minimum mandatory period of 5 (five) years from the date of the execution of this agreement (the "minimum holding period").
 2. Only after the full completion of the Minimum Holding Period shall the investor be entitled to withdraw from this agreement. To validly exercise such right of withdrawal the investor must provide prior written notice to Smith & Adams Capital, S.A. at least six (6) months in advance, such notice being given after the expiration of the Minimum Holding period (the "Withdrawal Notice").
 3. Upon the occurrence of the repurchase event under this Clause 8°, the Promoter's repurchase obligation shall be satisfied exclusively through the transfer of full and definitive title and ownership over the residential unit referred to in Clause 4° and Clause 7°, through the mandatory mechanism of *dação em cumprimento* therein established.
 4. Upon the completion of the repurchase and payment under this Clause 8°, the contractual relationship between the Parties shall be considered terminated, with both Parties granting each other full and final discharge of all obligations.
 5. As outlined in Clause 13°, the Investor may assign their position to a third party only with the express prior written consent of the Promoter, or to their legal heirs (*mortis causa*) upon prior notice of 30 days, provided such heirs comply with the KYC/AML requirements outlined in Clause 11°.
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9°

Confidentiality

1. The Parties undertake to maintain the absolute confidentiality and secrecy of all information that they have known or become aware of in relation to the other Party's activity, as well as the specific commercial conditions under which this Agreement was concluded, specifically the yield structure and the Urban Collection (Beato) guarantee, committing not to disclose the same without the prior formal written approval of the other Party.
2. The Parties are hereby authorized to disclose confidential information to their shareholders, directors, managers, partners, employees, agents, consultants, legal advisors, auditors, or collaborators who, by virtue of the work or service they provide, must have access to said information for the execution of this Agreement.

3. In the case provided for in the preceding paragraph, the Parties shall ensure that the persons to whom the confidential information is disclosed are aware of its confidential nature.

4. In the event of a breach of the confidentiality obligation, the Party to which the breach is attributable shall be liable for all losses, damages, or injuries suffered by the other Party.

5. The confidentiality obligation set out in this clause shall remain in force during the term of the Agreement and for a period of two (2) years after its termination.

10°

Data Protection

1. During the execution of this Agreement, SMITH & ADAMS CAPITAL, S.A will have access to the Investor's personal data, which shall be processed in strict accordance with the General Data Protection Regulation (EU) 2016/679 (GDPR), the Portuguese Law no. 58/2019, of August 8th, and other applicable legislation.

2. Personal data shall be processed by SMITH & ADAMS CAPITAL, S.A to the extent strictly necessary for the execution of this Agreement and to fulfil its legal and regulatory obligations, namely those arising from the Asset Management Regime and Anti-Money Laundering (AML) regulations.

3. The personal data shall be retained while the contractual relationship between the Parties endures and/or for the additional period necessary to fulfil statutory limitation periods (typically 10 years for fiscal and regulatory purposes).

4. At any time and within the legal boundaries, the Investor may exercise the rights of access, rectification, erasure ("right to be forgotten"), restriction of processing, objection, and portability.

11°

Money Laundering

1. The Parties expressly declare and warrant that any amounts paid under this Agreement, including the initial subscription and any subsequent payments, shall not have their origin in illicit activities or criminal conduct.

2. The Parties undertake to fully comply with all applicable rules and regulations regarding the prevention of money laundering and terrorism financing, specifically Law no. 83/2017, of August 18th (as amended).

3. The fulfilment of legal obligations regarding the prevention of money laundering and terrorism financing by SMITH & ADAMS CAPITAL, S.A and The Lakhani Group Capital SGOIC, S.A, shall not be deemed as valid grounds for any claim of compensation, indemnification, or contractual termination by the Investor.

4. The Investor undertakes to promptly provide all documentation and information requested by SMITH & ADAMS CAPITAL, S.A, or the Management Company to fulfil their "Know Your Customer" (KYC) and AML obligations.

5. The refusal or failure by the Investor to provide the identification information or documentation necessary for SMITH & ADAMS CAPITAL, S.A, to fulfil its AML/CFT obligations within a reasonable timeframe shall be deemed a definitive contractual default by the Investor.

12°

Force Majeure

1. In the case where an event unconnected to the will of the Parties occurs, namely war, hostilities, pandemics, invasion, rebellion, tumults, nuclear explosion, terrorism, adverse climate conditions, legislative changes (including significant alterations to the Golden Visa regime), global financial crisis, or strikes of general or sectorial scope and such event directly impacts SMITH & ADAMS CAPITAL, S.A, capacity to acquire the (UPS) or fulfill the yield obligations, then such situation shall be considered a situation of Force Majeure for the purposes of this Agreement.

2. The Party affected by the Force Majeure event shall promptly notify the other Party in writing, providing details of the event and its expected duration. During the pendency of the Force Majeure event, the obligations of the affected Party shall be suspended to the extent they are prevented by such event, without penalty.

13°

Assignment of Contractual Position

1. In accordance with Article 424 of the Portuguese Civil Code, neither Party shall have the right to assign or transfer its contractual position, rights, or obligations arising from this Agreement to any third party without the prior formal written consent of the other Party.

2. Notwithstanding the above, SMITH & ADAMS CAPITAL, S.A. is hereby expressly authorized to freely transfer its contractual position in this Agreement to an Affiliate Company without requiring further consent from the Investor.

3. Any assignment carried out under the preceding paragraph must be notified to the Investor in writing within 15 (fifteen) business days. Such assignment shall not result in any reduction or extinction of the guarantees provided to the Investor.

4. The Investor expressly acknowledges and accepts that exercising the Right of Withdrawal before the completion of the 5-year mandatory holding period will result in the immediate loss of eligibility for the Residence Permit for Investment (Golden Visa). SMITH & ADAMS CAPITAL, S.A shall not be held liable for any immigration consequences resulting from the Investor's decision to withdraw.

14°

Notices

1. All notices in connection with the scope of this Agreement shall be served in writing and sent by registered letter or e-mail with acknowledgment of receipt or delivered by hand, to the following addresses:

SMITH & ADAMS CAPITAL, S.A / The Lakhani Group Capital SGOIC, S.A.:

Address: Avenida José Malhoa, number 14 – 7th floor, Lisbon.

Email: geral@smithandadams.com

Investor:

Address: _____

Email: _____

2. The aforementioned addresses will remain in force until notification is given to the counterparty with a new address. Any amendment to the addresses provided in this Agreement must be notified to the other Party in accordance with Clause 14° above.

15°

Miscellaneous

1. The Parties shall not perform, omit, or, where it is within their power, permit others to perform or omit any acts, material or legal, which jeopardize the terms and conditions of this Agreement.

2. This Agreement may only be amended by express written agreement of each of the Parties.

3. Unless otherwise expressly provided for in this Agreement, the non-exercise (total or partial) by any of the Parties of the rights and faculties arising from it shall in no case signify a waiver of such rights and faculties.

4. The illegality, invalidity, or unenforceability of any provision of this Agreement at any time shall not affect or prejudice the legality, validity, or enforceability of the remaining provisions.

5. This Agreement constitutes the entire agreement between the Parties, superseding and revoking any declarations or commitments, verbal or written, relating to the matters regulated herein.

16°

Governing Law and Jurisdiction

1. This Agreement is governed by Portuguese Law.

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2. All disputes arising from the interpretation, validity, and performance of this Agreement shall first be settled by agreement between the Parties.

3. If it is not possible to reach such an agreement within ten (10) days of a written request by either Party, all disputes shall be definitively resolved in accordance with the Arbitration Regulation of the Arbitration Center of the Portuguese Chamber of Commerce and Industry (Commercial Arbitration Center), by one or more arbitrators appointed in accordance with said Regulation.

IN WITNESS WHEREOF, the Parties hereto have executed this Forward Purchase Agreement as of the date first written above.

Lisbon, DD/MM/YYYY.

Attorney in fact of SMITH & ADAMS CAPITAL, S.A

[Client Details]